

**DRAFT STATEMENT OF WORK**  
**CBP/OCC PARALEGALS FOR REAL ESTATE SUPPORT SERVICES**

## **1.0 GENERAL**

### **1.1 BACKGROUND**

The purpose of this contract is to obtain professional real estate paralegal support services for the U.S. Customs and Border Protection's (CBP), Office of Chief Counsel (OCC). These services are required to assist OCC attorneys in the legal and administrative processes associated with the acquisition of land, including the tasks outline in Section 2.0, necessary for the planning, design, and construction of border barrier systems and related infrastructure.

### **1.2 SCOPE**

The contractor shall provide CBP's OCC with nine (9) paralegals and one (1) program manager to support CBP's OCC with the tasks and deliverables as defined in Sections 2.0 and 5.0 respectively.

### **1.3 OBJECTIVE**

This Statement of Work (SOW) describes a comprehensive approach to achieving the mission of obtaining real estate related paralegal support services. The primary objective is to provide high-quality, specialized legal support that ensures the expeditious and legally sound acquisition of private and public land in support of the construction of the border barrier system and related infrastructure.

## **2.0 SPECIFIC REQUIREMENTS/TASKS**

### **2.1 *Task One: Title Review***

- Assist with OCC's title review for CBP-funded land acquisition pursuant to the Regulations of the Attorney General Governing the Review and Approval of Title for Federal Land Acquisitions (2016).
- Review record and non-record title evidence to identify chain of title, title defects, liens, claims, encumbrances, and any other title or conveyancing issues in support of CBP-funded land and real estate acquisition.
- Correlate historic records with current land records and correlate data in a variety of formats (e.g., digital, hard copy, microfiche, etc.), such as property tax maps, aerial photos, natural resources data, environmental monitoring data and models.
- Identify gaps in historical title records, inconsistencies in conveyance histories, and instances of inadequate proof of landowner ownership.
- Prepare Microsoft Excel spreadsheets or Microsoft Word documents that summarize the critical contents of the items reviewed, including, as appropriate, recording information, legal description, and the legal consequences of the item.
- Perform legal research and prepare draft legal documents.

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**2.2**     *Task Two: Due Diligence Support*

- Provide support to OCC attorneys performing due diligence tasks related to boundary, land title, and right of way (ROW) surveys. These surveys will primarily involve land in the Southwestern United States (e.g., Texas, California, New Mexico, Arizona) located close to the Southwest Border, though other geographic areas may be included.
- Assist in record research and deed analysis.
- Review specialized surveys, such as those involving wetlands or other environmental features, to help ensure compliance with any applicable regulations.

**2.3**     *Task Two: Appraisal Support*

- Provide support to OCC attorneys in reviewing and assessing appraisal reports to help ensure compliance with the Uniform Appraisal Standards for Federal Land Acquisitions (6th ed. 2016).
- Assist in determining appropriate just compensation amount for acquisition of interests in land and real estate.

**2.4**     *Task Three: Land Acquisition and Negotiations Support*

- Draft land acquisition instruments such as offers to sell, deeds, sales, exchange agreements, and pre- and post-acquisition title opinions for attorney review.
- Review documentation for land acquisition, such as easements, right-of-way agreements, deeds, and other legal documents.
- Assist in preparing negotiation and acquisition documentation, including negotiation summaries, purchase agreements, settlement justifications, and condemnation packages, consistent with the Uniform Relocation Assistance and Real Property Acquisition Policies Act of 1970 and 49 C.F.R. Part 24.
- Perform legal compliance reviews of relocation plans, compliance reports, closing documents, and environmental assessment reports.

**2.5**     *Task Four: Litigation Support*

- Support OCC's efforts in support of the Agency when litigation arises from CBP's real estate and land acquisition activities.
- When applicable, assist in efforts to exercise eminent domain to obtain property for public use.
- Assist in preparation of documents for use as exhibits for court filings and trials.

**2.6**     *Task Five: Freedom of Information Act (FOIA) Support*

- Assist with reviewing and responding to any FOIA requests related to CBP's acquisition of interests in land and real estate.
- Help review documents for possible production, make redactions, prepare litigation reports, affidavits, and other pleadings. Participate in motion drafting and assist in meeting docket deadlines.

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### **3.0 OTHER APPLICABLE CONDITIONS**

#### **3.1 PERIOD OF PERFORMANCE**

The period of performance for this contract is one 12-month base year and three (3) 12-month option periods. The period of performance will be determined at the time of award.

#### **3.2 PLACE OF PERFORMANCE**

The principal place of work will be primarily in Texas and Arizona along the southern border; however other designated alternate workplace(s) maybe be identified.

#### **3.3 DISCLOSURE OF INFORMATION**

Information furnished by the contractor under this contract may be subject to disclosure under the Freedom of Information Act (FOIA). Therefore, all items that are confidential to business, or contain trade secrets, proprietary, or personally-identifiable information must be clearly marked. Any information made available to the contractor by the Government must be used only for the purpose of carrying out the requirements of this contract and must not be divulged or made known in any manner to any person except as may be necessary in the performance of the contract.

#### **3.4 ADVERTISEMENTS, PUBLICIZING AWARDS, AND NEWS RELEASES**

All press releases or announcements about agency programs, projects, and contract awards need to be cleared by the Program Office and the Contracting Officer. Under no circumstances shall the Contractor, or anyone acting on behalf of the Contractor, refer to the supplies, services, or equipment furnished pursuant to the provisions of this contract in any publicity news release or commercial advertising without first obtaining explicit written consent to do so from the Program Office and the Contracting Officer.

#### **3.5 GENERAL REPORT REQUIREMENTS**

The Contractor shall provide all written reports in electronic format with read/write capability using applications that are compatible with DHS workstations (Windows operating system and Microsoft Office Applications).

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#### 4.0 DELIVERABLES

The Contractor shall consider items in **BOLD** as having mandatory due dates. Items in *italics* are deliverables or events that must be reviewed and/or approved by the COR prior to proceeding to next deliverable or event in this SOW.

| ITEM | SOW REFERENCE | DELIVERABLE / EVENT                                                                                                                                                                                         | DUE BY                                        | DISTRIBUTION    |
|------|---------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------|-----------------|
| 1    | 2.1           | <b>Post Award Conference/Kick-Off Meeting</b>                                                                                                                                                               | 15 days from award                            | COR and CO      |
| 2    | 2.2           | <b>Quality Control Plan</b>                                                                                                                                                                                 | 30 days from award                            | COR and CO      |
| 3    | 2.3           | <b>Training Completion Certificate</b>                                                                                                                                                                      | Within 2 business days of COR or CO request   | COR and CO      |
| 4    | 2.4           | <b>Reports and other written materials prepared in accordance with Specific Tasks</b>                                                                                                                       | As established in coordination with assigner  | COR             |
| 5    | 2.5           | <b>Progress Reports</b>                                                                                                                                                                                     | TBD                                           | COR and CO      |
| 6    | 2.6           | <b>Monthly Status Reports (to include at a minimum: identification of tasks currently in process; dates tasks were assigned; Contractor personnel assigned, estimated time remaining on assigned tasks)</b> | By 10 <sup>th</sup> of the month              | CO and assigner |
| 7    | 2.7           | <b>Transition-Out Plan</b>                                                                                                                                                                                  | 60 calendar days prior to contract expiration | COR             |